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Paper : ADVANCED CONSTITUTIONAL LAW

Module :
DEMOCRATIC AND REPUBLICAN NATURE OF
GOVERNMENT



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Component - I (B) Description of Module

	Description of Module
Subject Name	Law
Paper Name	Advanced Constitutional Law
Module Name/Title	Democratic and Republican Nature of Government
Pre-requisites	Understanding the nature and forms of various types of governments
Objectives	To understand the nature, scope and types of governments and their various nuances and implications
Keywords	Republic, sovereign, democratic, aristocratic, governments

Structure:

- 1. Introduction**
- 2. Learning OutcomeS**
- 3. Forms of Government**
- 4. Democracy and Republic : Conceptual Analysis**
- 5. Democratic and Republican form of Government : Historical Perspective**
- 6. Democratic Polity and Universal Adult Franchise : International Documents**
- 7. Position in US, France and Germany**
- 8. Republican and Democratic Government in India**
- 9. Conclusions and Summary**

1. Introduction

Political systems, ideologies and systems of governance in different countries across the globe differs in various respects. The same system of government cannot work well in all countries owing to differences in their political theory, ideologies and situations prevalent in that country. Of various systems of government, democracy has been regarded as the best popular form of government but the same has not worked satisfactorily in some countries viz., Pakistan, Bangladesh, Ukraine etc and therefore, some scholars like Sir Henry Maine, Oswald Spangler etc have outrightly condemned democracy.¹ In some countries, elected governments have been overthrown by military coup and the military ruler have established dictatorship. Different political ideologies having allegiance to socialism, communism, capitalism etc. have also influenced the nature of government. Consequently, in countries with communist ideology, democratic and republican form of government has not gained much ground in the real sense of the term.

2. Learning Outcomes

Readers shall be apprised about various kinds of government, the popular forms of government and in particular about the democratic and republican nature of government. For the purpose the discussion shall be divided into the following rubrics:

- Popular Forms of Government
- Democracy and Republic : Conceptual Analysis
- Democratic Polity and Universal Adult Franchise : International Documents
- Democratic and Republican form of Government : Historical Perspective

¹ R.C. Aggarwal, *Political Theory* (S. Chand, Delhi, 2007) 15

- Democratic and Republican Governments: Position in US, Germany and France
- Democratic and Republican Government : Indian Position
- Conclusions and Summary

3. Forms of Government

Various forms of governmental set-up exists in various countries. Of these, Aristocracy, Monarchy and Dictatorship are discussed in brief hereunder. Democratic and Republican form of government is discussed in next sections of this chapter.

3.1 Aristocracy

Word Aristocracy is derived from Greek words 'Aristos' which means the best and 'Kratos' which means power. Aristocracy thus means the rule by the best. According to Greek philosophers, it is a form of government par excellence. Aristotle defined aristocracy to mean government run by the superior persons of society. In fact, it is a form of government in which political power is exercised by the few.²

3.2 Monarchy

It was the most popular form of government till the beginning of 19th century wherein the source of all political authority lies was derived from a supreme ruler i.e. monarch. Generally in monarchy head of the state derived its office through hereditary succession. The office of a monarch was the predominant factor in government. This form of government still exists in countries like Great Britain, Japan, Saudi Arabia, Jordan, Bhutan, Brunei, Oman, Qatar etc. Australia, Canada, Japan, Belgium, Great Britain, Denmark, Malaysia, Morocco, New Zealand, Netherland, Norway, Bahrain, Sweden etc. However, in majority of the states there exists a mixed type of governments with democratic elements alongwith monarchy.

3.3 Dictatorship

Dictatorship is the form of government wherein one man assumes complete control over the government and enjoys absolute sovereignty. All political power emanate from his will and is exercised more or less arbitrarily. In the modern times military coup has established a military dictatorship in various countries like Indonesia, North Korea, Cuba, Libea etc. However, as observed earlier, many of the governments referred to as dictatorships are established under the popular sovereignty.

The above time-old classification of government into monarchy, aristocracy, and dictatorship does not have much value in the modern era. Most governments at present are of a mixed type. They include the monarchic, aristocratic, and democratic elements in various degrees e.g. the English constitution may appear to be monarchic on the surface, but it is fundamentally democratic, with a strong tinge of aristocracy. There are different types of democratic governments today viz. existing under a constitutional monarch or existing under a rigid or flexible constitution. But high majority of the government in the world over are based on the doctrine of popular sovereignty.³

² R.C. Aggarwal, 262

³ Eddy Asirvatham and K.K.Misra, *Polity Theory* (S. Chand, 2009) 448

The above discussion shows that various types of governments exist in various countries. However, democratic and republican nature of government has become most popular kind of government.

4.0 Democracy and Republic : Conceptual Analysis

Before proceeding further it is necessary to set out and understand the meaning and concept of 'Democracy' and 'Republic'.

4.1 Democracy : Meaning and Concept

The term 'democracy' is derived from the Greek word 'Demos', which was often used by the Greeks to describe the many, as distinct from the few, rather than the people as a whole.⁴ In common parlance, the term implies the rule of the majority of the community as a whole, including 'classes' and 'masses' since that is the only method yet discovered for determining what is deemed to be the will of a body politic which is not unanimous. This will is expressed through the election of representatives.⁵ Democracy thus implies that the ruling power of a State is vested in the community as a whole which is expressed through elected representatives.

Aristotle defined democracy to be the government of the poor or of the masses as opposed to classes. However, the Supreme Court of India in *Mohan Lal v. District Magistrate, Rai Bareilly*⁶, observed that today democracy is not a rule of 'Poor' as said by Aristotle or of 'Masses' as opposed to 'Classes' but by the majority elected from out of the people on basis of broad franchise.

H.M. Seervai, noted constitutional expert, has observed that the word "Democratic" by itself, or even in the phrase "democratic constitution", is ambiguous, for as pointed out by Prof. Finer,

"... no political terms have been so subjected to contradictory definitions as 'democracy' and 'democratic' since it has become fashionable and profitable for every and any state to style itself in this way. The Soviet Union and communist states of Eastern Europe, the Chinese People's Republic, North Korea and North Vietnam all call themselves democracies. So does Nasser's Egypt; so does General Stoessner's Paraguay; so did Sukarno's Indonesia. Yet, if anything is clear, it is that these states do not all meet the same definition of democracy."⁷

The Apex Court in *R.C. Poudyal v. Union of India*⁸, borrowing from Schumacher, observed that democracy is the ability of a people to choose and dismiss a government.

The foregoing analysis bring to surface that democracy refers to government by the people, for the people and of the people.

4.2 Republic : Meaning and Concept

⁴ Indira Gandhi v. Raj Narain, AIR 1975 SC 2299

⁵ C.F. Strong, *Modern Political Constitutions* (ELBS, 2nd Edition, 1970) 172

⁶ 1992 (4) SCC 80

⁷ H.M. Seervai, *Constitutional Law of India* (Universal, Delhi, Fourth Edition, 1999) 279-80

⁸ AIR 1993 SC 1804

The word *republic*, derived from the Latin *res publica*, or "public thing," refers to a form of government where the citizens conduct their affairs for their own benefit rather than for the benefit of a ruler. Black's Law Dictionary 6th Edition defines the term 'republican government' as a government of the people; a government by representatives chosen by the people. However, the definition does not delve on other features of republican government.

Black's Law Dictionary, 7th Edition defines, 'republic' as a system of government in which the people hold sovereign power and elect representatives who exercise that power. It contrasts on the one hand with a pure democracy, in which the people or community as an organized whole wield the sovereign power of government, and on the other with the rule of one person such as a king, emperor, czar, or sultan.

The definition provides a contrast between the democracy on the one hand, which in fact is a rule by majority and on the other hand with the rule of King, Czar Sultan or emperor. Thus, defined republican form of government implies a system of government which apart from providing for elected representative as head of the State, recognizes individual rights and gives primacy to the protection of unalienable rights of sovereign people. Central meaning of republic revolves tightly around popular sovereignty, majority rule and peoples' right to alter or abolish the constitution.⁹

In republican form of government, head of the state is elected by the people. It is different from a pure democratic government in the sense that whereas a democratic government may mean rule by majority and deprivation of the rights of the minority, republican form ensures equal rights to all sections of society and is anti-thetical to totalitarian/majoritarian rule. In republican form like democracy elected representative run the government, but it cannot be regarded as rule by mob. Rights of individuals and minorities are ensured and the rule of law prevails giving equal status and participation to all sections of society.

5.0 Democratic and Republican form of Government : Historical Perspective

Democracy is said to be invented by Greeks. In Ancient Greece, direct democracy was in existence and citizens in ancient Greece exercised more power than they have in a modern democratic State. Citizens had the right to vote on every proposed law and even the judges were appointed from among the citizens.¹⁰ This system was, however, confined to small states or city states such as Athens where the democratic system prevailed.

Direct democracy which existed in small city states in Greece is not a suitable form of government for larger states and as such soon representative democracy gained ground. Representative democracy implies rule by the people through their elected representatives as compared to direct democracy where people directly participate in decision making. It gave birth to various representative institutions. In England, France and Spain, democratic institutions were established by the Monarchy to help in

⁹ Amar Akhil Reed, "Central Meaning of Republican Government : Popular Sovereignty, Majority Rule and the Problem of Denominator (Yale Law School, Faculty Scholarship Series, Paper No. 981, 1994)

¹⁰ Raisa Ali, *Representative Democracy and Concept of Free and Fair Elections* (Deep & Deep, New Delhi, 1996) 24

the collection of taxes and for other administrative purposes whereas in countries like Germany these institutions rose from the bottom as a result of pressure exerted by the people on the Monarch.

Regarding the origin of present day representative democracy through elections, there is divergence of opinion among scholars. Some scholars argue that representative institutions had their origin in Germany and Holland whereas others argue that these bodies came into existence during middle ages to help and advise the Monarch on certain important matters. These institutions were referred to by different names in various countries in 14th Century viz 'Parliament' in England, 'Estates General' in France, 'Cortes' in Spain, 'Duma' in Russia and 'Diet' in Japan. H.J. Ford has opined that these institutions dated back only to the middle of nineteenth century.¹¹ The growth of Democratic institutions and electoral process, in the real sense began with the advent of French Revolution in the year 1789¹².

6.0 Democratic Polity and Universal Adult Franchise : International Documents

Universal Declaration of Human Rights in 1948 declared that the will of the people shall be the basis of authority of government; this shall be expressed in periodic and genuine elections which shall be by universal and equal suffrage and shall be held by secret vote or by equivalent free voting procedures.¹³ Thus the Declaration provided for a democratic polity with universal equal franchise.

Article 25 of International Covenant on Civil and Political Rights, 1966 provides as under

Every citizen shall have the right and the opportunity, without any of the distinctions mentioned in Article 2 and without reasonable restrictions:

- (a) to take part in the conduct of public affairs, directly or through freely chosen representatives;
- (b) to vote and to be elected at genuine elections which shall be universal and equal suffrage to be held by secret vote guaranteeing the free expression of the will of the electors.
- (c)

The above covenant thus clearly calls for recognition and enforcement of the right of every citizen to participate in electoral process through universal equal adult suffrage.

7.0 Position in US, France and Germany

7.1 US Position

Article IV, Section 4 of the United States Constitution provides that the United States shall guarantee to every state in this union a republican form of government. However, republican form of government has not been defined in the constitution. In *Calder v Bull*¹⁴, the US Supreme Court held that a republican form of government is dedicated to the basic principle that governments are created to safeguard fundamental rights. In later decisions viz. *Van Sickle v Shanahan*¹⁵, the US Court held

¹¹ V.D. Mahajan, *Recent Political Thought* (Premier Publishing Co., 1953) 263

¹² Raisa Ali, p. 24

¹³ Article 21, Universal Declaration of Human Rights.

¹⁴ 3 US (3 Dall.) 386 (1798)

¹⁵ 212 Kan. 426, 511 P. 2d 223 (1973)

that separation of powers is an inherent and integral element of republican form of government.

7.2 Position in France

The French Revolution led to an end of absolutism and the special privileges accorded to the upper classes and it ushered in an era of Liberty, Equality and Fraternity. Article 3 of the French Constitution provides

- National sovereignty shall vest in the people, who shall exercise it through their representatives and by means of referendum.
- No section of the people nor any individual may arrogate to itself, or to himself, the exercise thereof.
- Suffrage may be direct or indirect as provided for by the Constitution. It shall always be universal, equal and secret.
- All French citizens of either sex who have reached their majority and are in possession of their civil and political rights may vote as provided for by statute.

Thus the Constitution contemplates republican government in France.

7.3 Position in Germany

The Constitution of the Federal Republic of Germany, Article 20(1) provides that Federal Republic of Germany shall be democratic and social welfare state. Article 20(2) provides that All State authority is derived from the people and it shall be exercised by the people through elections and other votes and through specific legislative, executive and judicial bodies. However, the Constitution does not lay down the detailed election procedure. The federal legislation provides for a combination of proportional representation and single member constituencies. Voting is done by universal, direct and free equal ballot.¹⁶

8.0 Republican and Democratic Government in India

Democratic and republican form of government was not unknown to ancient India. Infact, there is sufficient literature demonstrating that self governing representative bodies were in existence in various parts of ancient India during Vedic and Post-Vedic period and India has been described as nursery of some of the most ancient republics of the world. The *Rigveda* refers to *Sabhas* (General Assembly analogous to House of People) and *Samitis* (the Upper Chamber, body of elders).¹⁷ These bodies were referred to as the twin daughters of Prajapati.¹⁸

However, scholars have differences regarding the role and composition of these bodies. According to K.P. Jayswal, *Samiti* was the national assembly of the common people.¹⁹ Some others have opined that *Samiti* was a consisting of not only the common people but also *brahmnas* and rich patterns. Whatever may be the views regarding the roles and responsibilities of *Samitis*, the available literature shows that

¹⁶ Dr. R.K. Marwah, Law of Free and Fair Elections in India : A Critique (unpublished Ph.D. thesis), Guru Nanak Dev University, Amritsar, 2004

¹⁷ Subash C. Kashyap, *History of the Parliament*, (Shipra, New Delhi, 1999), 1-2

¹⁸ R.N. Vyas, *Nature of Indian Culture* (Concept Publishing Co., New Delhi, 1992) 144

¹⁹ K.P. Jayswal, *Hindu Polity : A Constitutional History of India in Hindu Times* (Bengaluru Printing and Publishing Company Ltd., Bengaluru, 1967) 12

the *Samiti* was a powerful body and it used to elect the king, being a sovereign body.²⁰

Sabha has also been referred to in varied senses by various scholars. However, the scholars are unanimous on the point that it was an elected body. Its members were known as *Sabhasads* and its president as *Sabhapati*. Thus, in the Vedic Period representative institutions existed and exercised considerable authority and acted as healthy checks on the powers of the king.²¹

Several republics evolved during the Vedic period. '*Gana*', the technical word for the republic is found at forty six places in Rigveda. The word '*Gana*' means 'number', and '*Ganarajya*' 'the rule of numbers', The secondary meaning of '*Gana*' came to be a republic or senate and as republics were governed by them, '*Gana*' came to mean republic itself.²²

In the post Vedic Period also the instances of existence of democratic institutions can be traced. Reference of assemblies is found in many small republics. Subhash Kashyap has opined that in these republics (*Samgha* and *Ganarajya*) sovereignty vested in assembly which elected the executive and military leaders and also control foreign affair issues pertaining to peace and war²³. In the Budhist era various republics were believed to be inexistence viz., *Lichchavis*, *Sakyas*, *Moriyas*, *Mollas* and the like. *Kautilya* in his *Arthashashtra* makes mention of *Virjikas*, *Lichchivikas*, *Mellakas* in the East and *Kurus* and *Panchalas* in the Centre.²⁴

These democratic institutions however disappeared in the medieval period and consequently in the mughal period, the growth of representative assemblies was hampered. It is worth mentioning here that such institutions at the village level in the gram sabhas continued.

During British era, *Indian Councils Act*, 1861 provided for small legislative bodies though these bodies consisted only of nominated members with no representation for local people. *Indian Council Act*, 1892 provided a small element of local representation in legislative bodies through nomination. The Act of 1909 provided for indirect election and nomination of Indian representatives. The Act provided for setting up of Legislative Council at the centre and in the provinces. The Central Legislative Council which was to consist of 68 members was designed to have 27 elected members. However, they were chosen by the special constituencies such as municipalities, district and local boards chambers of commerce, universities, trade associations, land holders etc. The Act reserved certain seats for Muslims who were to be elected by separate electorates consisting of Muslims voters only.²⁵

²⁰ R.K. Marwah

²¹ Krishna Kumar, *Direct Democracy and Village Governance* (Regal Publications, New Delhi, 2007) 50

²² K.P. Jayswal, 12-13

²³ Subhash Kashyap, *Our Parliament: An Introduction to the Parliament of India*, (National Book Trust, New Delhi, 2001) 2-3

²⁴ Shiv Lal, *Election and the Constitution*, (The Election Archives, New Delhi, 1976) 9-13

²⁵ V.S. Rama Devi and S.K. Mendiratta, *How India Votes : Election Laws, Practice and Procedure* (2nd Edition, Lexis Nexis, New Delhi, 2008) 4-5

The Act of 1919 also provided for representation of the Indians but it continued with the practice of reservation of seats for Muslims on the basis of communal electoral roles. In addition, it also reserved seats for Sikhs. Under the Act, bicameral legislature was created at the centre and for the first time during the British era elected members were in majority in each of the houses. Elections were however not at all representative rather qualification on the basis of ownership of property, land holding, payment of income tax and municipal tax etc were provided making it a very limited franchise.

The Government of India Act, 1935 for the first time contemplated a federal structure for India. Proposed federation was to have elected representatives. However, princely states were given an option of joining or not joining the proposed federation. Since, the proposed federation never came into existence under the Act of 1935, it is not worthwhile to discuss the arrangements for elections and representative government under the Act. Consequently, the arrangements under the Act of 1919 continued with some modifications.

Constitution of Constituent Assembly in 1946 by elections paved the way for drafting of new constitution. In the Constituent Assembly on 13th December, 1946 Pt. Jawahar Lal Nehru moved the 'Objective Resolution' which contained inter-alia a clause providing for its firm and solemn resolve to proclaim India as an independent sovereign republic. The said 'Objective Resolution' was adopted on 22nd January, 1947. *Indian Independence Act, 1947* passed on 18th July, 1947 by the British Parliament gave India the status of independent dominion with effect from 15th August, 1947. Under the Act, India was to be a dominion under the British Commonwealth and British government retain the power to appoint Governor General for dominion of India. Division of Punjab and Bengal provinces necessitated adjustments in Constituent Assembly and elections in these two provinces. The provisions of *The Government of India Act, 1935* remained applicable till the adoption and implementation of Constitution of India. Consequently the elections in these two states were held, even after independence, on the basis of communal electoral rolls.

Constitution was adopted on 26th November, 1949 wherein the Preamble declared India to be a sovereign democratic republic. The preamble was adopted in the name of 'We the People of India'. The Preamble of the Constitution of India declares that the Constitution aims at securing Justice – Social, economic and political; Liberty – of thought, expression, belief, faith and worship and; Equality – of status and of opportunity. It was argued that the Preamble of the Indian Constitution should be immediately brought into force on the day of adoption of the Constitution but the contention was rejected. H.M Seervai has rightly opined that it is obvious that the Preamble which declared India to be a Republic could not possibly come into force on 26 November 1949, for India continued to be a Dominion till 26 January 1950.

On the appointed day, fixed in Article 394 of the Constitution of India i.e. 26th January, 1950, India became an independent sovereign democratic republic ceasing to be a dominion under the British empire and governed by its own Constitution 'given by the people of India unto themselves'²⁶. The constitution has adopted the parliamentary form of government with an elected President as the head of the state.

²⁶ V.S. Rama Devi, 17

The democratic character of the Indian polity is illustrated by the provisions conferring on the adult citizens the right to vote and by the provision for elected representatives and the responsibility of the executive to the legislature.

The *Constitution of India* established the Parliamentary form of Government at the Centre as well as in the States. The elections to Parliament and State Legislatures and offices of the President and Vice President are conducted by an independent Election Commission. The right to vote has been made a statutory right under the *Representation of Peoples Act, 1951*. To ensure real democratic polity, an independent Election Commission has been established under chapter XV of the Constitution. Article 324 declares that the superintendence, direction and control of the preparation of electoral rolls for, and to conduct, all elections to Parliament and legislatures of every State and of elections to the offices of President and Vice-President held under the Constitution, shall be vested in the Election Commission. Article 325 declares that there shall be one general electoral roll for every Parliamentary constituency for election to either house of Parliament or of the legislatures of a State and that no person shall be ineligible for inclusion in any such roll or claim to be included in any special electoral roll for any such constituency on grounds of religion, race, caste, sex or any of them. Article 326 provides for Universal Adult Suffrage laying down that every person who is above the age of 18 years and who is not otherwise disqualified shall be entitled to be registered as a voter.

Preamble, which has been referred to as a key to open the mind of makers of the Constitution²⁷, thus, very clearly establishes that the Constitution aims at securing equality, liberty and justice to all citizens irrespective of their caste, creed, religion, sex, race etc. Provisions contained in Part III of the Indian Constitution not only guarantee fundamental rights to all citizens but also confer and protect the rights of the minorities clearly bringing out the intention of the constitution framers to make India a democratic republic ensuring not only popular sovereignty but also ensuring protections against arbitrary rule by majority denying minority their fundamental rights.

The nature of Indian polity came up for discussion before the Apex Court in *R.C. Poudyal v Union of India*²⁸, wherein the Supreme Court opined that the Constitution framers wanted a democracy where every person is to be treated equal and they enacted the Constitution with this firm resolve. The Court opined that words 'democracy' and 'republic' have to be understood in this light. The court observed

“..... The expressions 'democracy' and 'democratic' have been used in varying senses in different countries and in many places have been subjected to denote the state of affairs which is in complete negation of the meaning in which they are understood. During the present century it progressively became more fashionable and profitable to frequently use those terms and accordingly they have been grossly misused. In our constitution, it refers to denote what it literally means, that is, 'people's power'. It stands for the actual, active and effective exercise of power by the people in this regard.It conveys

²⁷ *Re Berubari Union & Exchange of Enclaves*, AIR 1960 SC 845

²⁸ AIR 1993 SC 1804

the state of affairs in which each citizen is assured of the right of equal participation in the polity....”²⁹

The Court further rightly observed that

“As explained by the Preamble, the quality of democracy envisaged by the Constitution does not only secure the equality of opportunity but of status as well, to all the citizens. This equality principle is clearly brought out in several Articles in the different parts of the Constitution, including Part III dealing with Fundamental Rights, Part IV laying down the Directive Principles of State policy and Part XVI having special provisions relating to certain classes. The spirit pervades through the entire document as can be seen by the other provisions too. When the question of the qualification for election as President arises, all classes of citizens get same treatment by Articles 58 and 59 (subject to certain qualifications which are uniformly applied) and similar is the position with respect to the Vice-President and the other constitutional functionaries.”³⁰

The *Constitution of India* thus establishes a democratic republic and it has, more or less, worked satisfactorily since the commencement of the Constitution. The government derives its source and strength from the people and the amendments to the constitution can be said to be an expression of popular sovereignty by the people through their elected representatives.

9.0 Conclusions and Summary

From the foregoing analysis, following propositions emerge:

- 1) There are various forms of government viz. aristocracy, dictatorship, monarchy and democratic republican government. Of these, democratic government has become the most popular form of government. Most governments at present are of a mixed type. They include the monarchic, aristocratic, and democratic elements in various degrees. Even in cases where monarchy or dictatorship exists they are expressed to be under popular sovereignty.
- 2) Democracy can be defined as rule by majority i.e. government of the people, by the people and for the people. However, it is not rule by mob. People express themselves through periodic elections.
- 3) Direct democracy as a form of government was in existence in ancient Greece in small city state of Athens. However, direct democracy is not possible in large states though referendum on a particular issue is still in vogue.
- 4) Representative democracy has existed in ancient Greece, Rome and ancient India.

²⁹ Para 47

³⁰ Para 48

- 5) Republic implies a government where the head of the state is elected by the people and the source and authority of the government is derived from the people. Real sovereignty lie in the people. In modern times it has become customary for every country to declare itself as a republic regardless of the ground realities.
- 6) Democratic republic in modern times implies a government chosen by the people for themselves which guarantees not only popular government but also guarantees that rights of individuals shall be protected. In modern democratic republic governments, even though the governments are chosen by majority yet the rights of the minorities are protected under the fundamental law and the majority government is not expected to be a totalitarian regimem.
- 7) In Ancient India republican form of government was in existence during Vedic and Post Vedic Period. However, during Mughal and British era, republican form of government was not much in vogue.
- 8) The *Government of India Act*, 1919 provided for elected representatives of Indians but it was on the basis of communal electoral rolls and it was not based on universal adult equal suffrage. *Government of India Act*, 1935 provided for a representative democratic structure but the citizenry did not have universal equal suffrage and the representatives were not the representatives of the people. Even the elections held after the independence for the provinces of Punjab and West Bengal immediately after partition were based on such electoral rolls because under the Independence Act, 1947, provisions of *Government of India Act*, 1935 were continued till the new constitution was adopted.
- 9) Indian became a sovereign democratic republic on the commencement of the Constitution i.e. on 26th January 1950. The republican status was acquired on 26th January 1950 and not on date of adoption of the Constitution because Independence Act, 1947 gave India a dominion status till new Constitution was enacted.
- 10) The Preamble of the Constitution of India and various provisions contained in Part III, IV, XV and elsewhere clearly establish India as a sovereign democratic republic in real sense of the term. The citizens have been guaranteed right to governance by their elected representatives who are chosen through independent election machinery by way of universal equal adult suffrage. The Constitution protects the rights of all citizens and guarantees rights of individuals and minorities. Every citizen subject to statutory qualifications and disqualifications has a right to vote and contest elections. All these features are the sine qua non of a real democratic republic polity.